

बिड दस्तावेज़ / Bid Document

बिड विवरण / Bid Details	
बिड बंद होने की तारीख/समय / Bid End Date/Time	13-07-2026 12:00:00
बिड खुलने की तारीख/समय / Bid Opening Date/Time	13-07-2026 12:30:00
बिड पेशकश वैधता (बंद होने की तारीख से) / Bid Offer Validity (From End Date)	90 (Days)
मंत्रालय/राज्य का नाम / Ministry/State Name	Ministry Of Petroleum And Natural Gas
विभाग का नाम / Department Name	Na
संगठन का नाम / Organisation Name	Oil And Natural Gas Corporation Limited
कार्यालय का नाम / Office Name	Ahmedabad Asset
शिकायत निवारण के संपर्क विवरण / Contact details of Grievance redressal	HOD Email id : Buyer Email id: buycon17.ongc.adi@gembuyer.in
कुल मात्रा / Total Quantity	1963000
वस्तु श्रेणी / Item Category	EOR Surfactant (ONGC) (Q3)
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / MSE Relaxation for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / Startup Relaxation for Years of Experience and Turnover	No
विक्रेता से मांगे गए दस्तावेज़ / Document required from seller	Experience Criteria, Certificate (Requested in ATC), OEM Authorization Certificate, Additional Doc 1 (Requested in ATC), Additional Doc 2 (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेज़ों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है / Do you want to show documents uploaded by bidders to all bidders participated in bid?	No
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या / Minimum number of bids required to disable automatic bid extension	3

बिड विवरण/Bid Details	
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	3
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	1
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	Yes
रिवर्स नीलामी योग्यता नियम/RA Qualification Rule	H1-Highest Priced Bid Elimination
बिड का प्रकार/Type of Bid	Two Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	2 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	Yes
Inspection to be carried out by Buyers own empanelled agency	Yes
Type Of Inspection	Pre Dispatch
Name of the Empanelled Inspection Agency/ Authority	THIRD PARTY INSPECTION AGENCY AUTHORISED BY ONGC
Quality Assurance Plan document	1783399343.pdf
Payment Timelines	Payments shall be made to the Seller within 10 days of issue of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	Yes (Arbitration clause document) as per DoE OM No.F.1/2/2024-PPD dated 03.06.2024 Arbitration should not be routinely included in contracts
सुलह खंड/Mediation Clause	Yes (Mediation clause document) as per DoE OM No.F.1/2/2024-PPD dated 03.06.2024 mediation clause should not be routinely included in contracts and pre-litigation mediation can be taken up without any such clause also

ईएमडी विवरण/EMD Detail

आवश्यकता/Required	No
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ईपीबीजी विवरण /ePBG Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
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ईपीबीजी प्रतिशत (%) / ePBG Percentage (%)	3.00
ईपीबीजी की आवश्यक अवधि (माह) / Duration of ePBG required (Months).	6

(a). ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

लाभार्थी / Beneficiary :

CE(SCM)

AHMEDABAD ASSET, NA, Oil and Natural Gas Corporation Limited, Ministry of Petroleum and Natural Gas
(Latha R Iyer)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई खरीद वरीयता / MII Purchase Preference

एमआईआई खरीद वरीयता / MII Purchase Preference	Yes
मेक इन इंडिया विक्रेताओं को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ तक की सीमा में है / Purchase Preference to MII sellers available upto price within $L1+X\%$	20
मेक इन इंडिया खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Maximum Percentage of Bid quantity for MII purchase preference	100
सार्वजनिक खरीद (मेक-इन-इंडिया को प्राथमिकता) आदेश 2017 के अनुसार केवल क्लास 1/क्लास 2 के स्थानीय आपूर्तिकर्ताओं को ही भागीदारी की अनुमति है दिनांक 16.09.2020 (समय-समय पर संशोधित एवं लागू) / Allow participation only from Class 1/Class 2 local suppliers as per the Public procurement (Preference to Make-in-india) order 2017 date 16.09.2020 (as amended and applicable time to time)	Yes, in compliance with the MII ORDER : DPIIT Order (as amended and applicable time to time)

एमएसई खरीद वरीयता / MSE Purchase Preference

एमएसई खरीद वरीयता / MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	100

ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.

1. Preference to Make In India products (For bids < 200 Crore): Preference shall be given to Class 1 local supplier as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by concerned Nodal Ministry for specific Goods/Products. The minimum local content to qualify as a Class 1 local supplier is denoted in the bid document. If the bidder wants to avail the Purchase preference, the bidder must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which no purchase preference shall be granted. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other than companies as per the Public Procurement (preference to Make-in -India) order 2017 dated 04.06.2020. Only Class-I and Class-II Local suppliers as per MII order dated 4.6.2020 will be eligible to bid. Non - Local suppliers as per MII order dated 04.06.2020 are not eligible to participate. However, eligible micro and small enterprises will be allowed to participate .The buyers are advised to refer the OM No.F.1/4/2021-PPD dated 18.05.2023.

[OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017 and its subsequent Orders/Notifications issued by concerned Ministry .Benefits of MSE will be allowed only if seller/service provider is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

2. **Purchase preference to Micro and Small Enterprises (MSEs):** Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 100% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

3. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

4. Short Duration Bid has been published by the Buyer with the approval of the Competent authority due to Emergency procurement of critical products/services.

5. **Inspection of Stores by Nominated Inspection Authority / Agency of buyer or their authorized representatives**

An independent third party Professional Inspection Body can help buyer in mitigating buyer's risk with pre-dispatch/post-dispatch inspection in order to ensure that equipment, components, solutions and documentation conform to contractual requirements. The buyer has a right to inspect goods in reasonable manner and within reasonable time at any reasonable place as indicated in contract. Inspection Fee/ Charges (as pre-greed between buyer and Inspection Agency) would be borne by the buyer as per their internal arrangement but may be

recovered from the seller if the consignment failed to conform to contractual specification and got rejected by the Inspection Officer. If so requested and accepted by the seller, initially seller may pay for inspection charges as applicable and get the same reimbursed from buyer if consignment accepted by the Inspecting Officer. For reimbursement seller has to submit proof of payment to Inspection Agency.

Seller/OEM shall send a notice in writing / e-mail to the Inspecting officer / inspection agency specifying the place of inspection as per contract and the Inspecting officer shall on receipt of such notice notify to the seller the date and time when the stores would be inspected. The seller shall, at his own expenses, afford to the Inspecting officer, all reasonable facilities as may be necessary for satisfying himself that the stores are being and or have been manufactured in accordance with the technical particulars governing the supply. The decision of the purchaser representative / inspection authority regarding acceptance / rejection of consignment shall be final and binding on the seller.

The Seller shall provide, without any extra charge, all materials, tools, labour and assistance of every kind which the Inspecting officer may demand of him for any test, and examination, other than special or independent test, which he shall require to be made on the seller's premises and the seller shall bear and pay all costs attendant thereon.

The seller shall also provide and deliver store / sample from consignment under inspection free of charge at any such place other than his premises as the Inspecting officer may specify for acceptance tests for which seller/OEM does not have the facilities or for special/ independent tests.

In the event of rejection of stores or any part thereof by the Inspecting officer basis testing outside owing to lack of test facility at seller's premises, the seller shall, on demand, pay to the buyer the costs incurred in the inspection and/or test. Cost of test shall be assessed at the rate charged by the Laboratory to private persons for similar work.

Inspector shall have the right to put all the stores or materials forming part of the same or any part thereof to such tests as he may like fit and proper as per QAP/governing specification. The seller shall not be entitled to object on any ground whatsoever to the method of testing adopted by the Inspecting officer.

Unless otherwise provided for in the contract, the quantity of the stores or materials expended in test will be borne by seller.

Inspecting officer is the Final Authority to Certify Performance / accept the consignment. The Inspecting officer's decision as regards the rejection shall be final and binding on the seller.

The seller shall if so required at his own expense shall mark or permit the Inspecting officer to mark all the approved stores with a recognised Government or purchaser's mark.

6. Reverse Auction would be conducted amongst all the technically qualified bidders except the Highest quoting bidder. The technically qualified Highest Quoting bidder will not be allowed to participate in RA. However, H-1 will also be allowed to participate in RA in following cases:

- i. If number of technically qualified bidders are only 2 or 3.
- ii. If Buyer has chosen to split the bid amongst N sellers, and H1 bid is coming within N.
- iii. In case Primary product of only one OEM is left in contention for participation in RA on elimination of H-1.
- iv. If L-1 is non-MSE and H-1 is eligible MSE and H-1 price is coming within price band of 15% of Non-MSE L-1
- v. If L-1 is non-MII and H-1 is eligible MII and H-1 price is coming within price band of 20% of Non-MII L-1

EOR Surfactant (ONGC) (1963000 kilogram)

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

तकनीकी विशिष्टियाँ /Technical Specifications

[* जेम कैटेगरी विशिष्टि के अनुसार / As per GeM Category Specification](#)

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
Description	Item	EOR Surfactant- ONGC

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
Requirements	Conforming Specification No of the product	ONGC specification(As per attached sheet)
Packing and Marking	Packing	Tanker

अतिरिक्त विशिष्टि दस्तावेज़ /Additional Specification Documents

Applicable Specification Document	View
Applicable Drawing Document	View
Verified and Signed Tp document	View

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Chauhan Vishalkumar Narsinhbhai	382721,I/c Receipt Kalol, ONGC, Kalol Stores, Kalol,	1963000	120

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Generic

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$, subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

2. Certificates

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

3. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

I **TECHNICAL BEC**

Clause No.	Vital Criteria for Acceptance of Bids
A	Bidders are advised not to take any exception/deviations to the bid document. Exceptions/ deviations, if any, should be brought out during the Pre-bid conference. In case Pre-bid conference is not held, the exceptions/ deviations along with suggested changes are to be communicated to ONGC within the date specified in the NIT and bid document. ONGC after processing such suggestions may, through an addendum to the bid document, communicate to the bidders the changes in its bid document, if any. However, during evaluation of bids, ONGC may ask the Bidder for Clarifications/confirmations/deficient documents of its bid. The request for clarification and the response shall be in writing and no change in the price or substance of the bid shall be sought or permitted. If the bidder still maintains exceptions/deviations in the bid, such conditional/ non-conforming bids shall not be considered and may be rejected.
B.1	Technical rejection criteria: The following vital technical conditions should be strictly complied with, failing which the bid will be rejected.
1	Bid should be complete in all aspects covering entire scope of job/ supply and should conform to the technical specifications indicated in the bid document, duly supported with technical catalogues/ literatures, wherever applicable. Incomplete and non-conforming bids will be rejected outright

2	<u>Manufacturer's experience:-</u> In case the bidder is a manufacturer of the offered item, he should satisfy the following along with documentary evidence, which should be enclosed along with the techno-commercial bid: (a) Minimum <u>01 years</u> of experience of manufacturing of same or similar item for EOR Surfactant. (b) Should have manufactured and supplied minimum of 10% of same or similar item for EOR Surfactant to any Central /State Govt. Organization/PSU/ Public Listed/Private Company, during the last 05 years. For meeting the requirement above at (a) & (b), the period reckoned shall be the period prior to the originally scheduled date of opening of the techno-commercial bid. Documentary evidence in respect of the above should be submitted in the form of copies of relevant Purchase Orders along with copies of any of the documents in respect of satisfactory execution of each of those Purchase Orders, such as - (i) Satisfactory Inspection report (OR) (ii) Satisfactory supply completion / Installation report (OR) (iii) Consignee Receipted Delivery Challans (OR) (iv) Central Excise Gate Pass / Tax Invoices issued under relevant rules of Central Excise / VAT/GST (OR) (v) any other documentary evidence that can substantiate the satisfactory execution of each of the purchase orders. <u>Similar item for EOR Surfactant:</u> <u>Any types of anionic Surfactant</u>
2.1	In case the bidder is not manufacturer, then the bidder is required to submit documentary evidence in respect of the above Manufacturing's experience clause 2(a) & 2(b) of the concerned manufacturer along with the techno-commercial bid.
2.2	Bidders, who have successfully executed development order for EOR Surfactant placed by ONGC/OIL pursuant to successful field trial testing would be considered as established source of supply and in that case, documents for satisfying Manufacturing's experience clause no. 2(a) & 2(b) are not required to be submitted. However, such bidders shall submit the certificate towards satisfactory execution of development order pursuant to successful field trial testing along with the techno-commercial bid. For Development Order issued by ONGC after 02.12.2020, such certificate should have been issued by Head INDEG only.

2.3

Applicable for bidders submitting their bid as Start-up:

In case Start-up bidder has successfully executed Purchase Order placed by ONGC/OIL/IOCL/HPCL/BPCL/GAIL for EOR Surfactant and the material supplied has been used in field satisfactorily, then such Start-up bidders will be considered meeting Manufacturing's experience clause 2(a) & 2(b). In this regard, bidder shall submit copy of purchase order/contract along with supporting document towards having used the material Satisfactorily in the fields for EOR Surfactant.

The above relaxation is subject to submission of required documents mentioned below :

If bidder is a Start-up (Definition of "Startup" shall be as per Gazette Notification G.S.R. 127(E) dated 19.02.2019 (as amended) of Govt of India) and willing to avail the relaxations as stipulated in tender document, then they should submit the following documents:

(i) Registration Certificate issued by Department for Promotion of Industry and Internal Trade (DPIIT), earlier known as Department of Industrial Policy and Promotion (DIPP), Ministry of Commerce, certified by Start-up Director/Partner.

(ii) A declaration from the Directors/Partner of the start-up stating that bid is submitted by Start-up as Manufacturer of the quoted item (in case of procurement of Goods)/ Provider of quoted services (in case of procurement of services) and not as a trader/dealer/distributor.

II

OTHER TECHNICAL TERMS & CONDITIONS

Sl.No.	
Note	The technical specifications attached in the Buyer Added ATC Upload is required to be considered for the instant case. It shall override the technical specifications mentioned anywhere else in the tender document.
1	Generic
i)	Actual delivery (and Installation & Commissioning, if covered in scope of supply) is to be done at following address: Unloading of EOR Surfactant at storage location is in the scope of supplier. ASP Jhalora (GGS-I Jhalora) - ONGC, Village: Merda, Meyana Road, Gujarat-382721 Landmark: Near ONGC, Jhalora ETP

ii)	Bidders are advised to check applicable GST on their own before quoting. Buyer will not take any responsibility in this regards. GST reimbursement will be as per actuals or as per applicable rates (whichever is lower), subject to the maximum of quoted GST%.
iii)	For hazardous chemical/item, all precautionary measure as per regulation from the point of transportation/ handling/ storage/ safety/ health/environment to be undertaken/ specified before dispatch. During dispatch, proper symbol for the hazard/ MSDS/ Batch No./date of manufacturing/ Gross Weight/ Net Weight/ shelf Life etc are to be written/ printed/ pasted on the body of the packing.
iv)	OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$, subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.
v)	Upload Manufacturer authorization: Wherever Authorized Distributors are submitting the bid, Manufacturers Authorization Form (MAF)/Certificate with OEM details such as name, designation, address, e-mail Id and Phone No. required to be furnished along with the bid. Either the manufacturer or their authorised distributor/dealer etc. can bid in a tender, but not both. Further, in cases where authorised distributor/dealer etc. participate in a tender on behalf of one manufacturer, they should not be allowed to quote on behalf of another manufacturer along with the first manufacturer for the same item. Manufacturers can authorize only one firm/bidder for specific tendered items. In case, a Manufacturer authorizes more than one firm/bidder in a tender, the bids of all such bidders will be rejected.
2	Inspection

	Nominated Inspection Agency: On behalf of the Buyer organization, any one of the following Inspection Agency would be conducting inspection of stores before acceptance: Pre-dispatch Inspection at Seller Premises (applicable only if pre-dispatch inspection clause has been selected in ATC): Third Party Inspection (TPI) Post Receipt Inspection at consignee site before acceptance of stores: NA
3	<u>Scope of Supply:</u> Scope of supply (Bid price to include all cost components): Only supply
4	<u>Certificates:</u> Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.
5	<u>Acceptance of Bulk Supplies:</u> (i) Testing of material shall be done as per corporate specification, however bidders are advised to ensure superior quality product (better than as required in corporate specification) so as to have sufficient tolerance for field applications. (ii) Submission of test report along with bid shall not be required / mandatory. However in respect of performance chemicals, in case a bidder wishes to get their material tested in ONGC Lab on payment basis before submission of their offer, then such facility on payment basis shall be available at RGL, Vadodara. Test will be done as per ONGC <u>tendered specification</u>.

6	The bidder will provide following document along with techno-commercial bid. i) An undertaking from the manufacturer/supplier that the product to be supplied in the event of an order on them shall be conforming to the tendered specifications with respect to the quality, packing and marking. ii) Bidder should confirm to the effect that material EOR Surfactant will be of recent make and shelf life of the material offered will be minimum 12 months from the date of dispatch. iii) Bidder should confirm that the Material will be supplied at destination as per delivery schedule for sampling/ inspection as per ONGC sampling/ inspection and acceptance of bulk supply procedure specified in the Terms & conditions. iv) Bidder should submit an undertaking along with the techno-commercial bid that in case material is not found conforming to the specification, the supplier shall lift the material within two weeks from the date of intimation at Supplier's cost. In case the material is not lifted by the supplier within two weeks, ONGC may decide to return rejected material to supplier on freight to pay basis at risk and cost of the supplier. Further, Supplier will replace the material at its cost within delivery schedule, failing which Failure and Termination Clause/ Liquidated Damages Clause will be applicable. (v) Bidders should have the required facilities for testing the quoted material as per International standards at their premises and also agree to inspection by ONGC or any other agency nominated by ONGC. In case the bidder is not the manufacturer, a certificate from the manufacturer to the effect that the manufacturer possesses the required facilities for testing the quoted material should be enclosed along with the techno-commercial bid.
7	Supplier has to deliver the material as per the delivery schedule i.e. lot wise full quantity in one go. However it may be modified depending upon the operational requirement & accordingly intimation regarding modified delivery schedule shall be made.
8	<u>Source Sampling, Bonding, De-Bonding and Testing of Chemicals procured from Indigenous sources:</u> A TPI agency shall be deputed for sampling, bonding of above Chemicals and if same passes in Lab test, debonding of Chemical and supervision for dispatch of chemicals at supplier's end shall also be done by TPI agency, which shall be engaged/hired and paid by ONGC. Testing of the samples will be carried out in the designated ONGC Labs. It shall be ensured by concerned Chemistry Department and purchaser that after the call for sampling/bonding is given by Supplier, the TPI agency shall be deputed within 7 Calendar days. Similarly, after the sample passes the Lab test, TPI shall be deputed within 7 Calendar days for debonding & dispatch of the material.

Total Four bulk samples will be drawn during sampling / bonding. The bulk samples taken at Source will have the seal and signatures of the party and authorised representative of TPI agency.

Two (2) samples will be sent to lab for test, one (01) sample will be given to supplier, one (01) sample will be given to Chemistry Dept. by TPI Agency.

TPI Agency shall forward the samples directly to the ONGC designated laboratory, ONGC Chemistry Department, as specified in the Purchase Order and also send intimation to the Purchase Dept. regarding forwarding of samples to the laboratory for testing and other authorities as mentioned above.

In all cases where sample has passed the test and there is no dispute, the sample will be destroyed after six months from the date of receipt of corresponding bulk consignment at the Project. In case of any dispute, these samples shall be retained till resolution of said dispute. Destruction / non-destruction of such samples shall not override the supplier's obligations under warranty / shelf life or any other supply order conditions.

TPI agency will be responsible for proper sampling, bonding of Chemicals, safe dispatch of the samples to designated ONGC Labs, and if sample passes in Lab test, debonding of chemicals and TPI agency shall also supervise dispatch of Chemicals at supplier's end.

In order to ensure dispatch of material by the supplier in the presence of TPI agency deputed for sampling, bonding, de-bonding and supervision of dispatch of chemicals, suitable provisions will be made in supply order that the supplier shall dispatch material in the presence of the TPI agency deputed for sampling, bonding, de-bonding and supervision of dispatch of chemicals.

After de-bonding, the dispatch shall be done by the Supplier in the presence of the TPI agency and the time limit from de-bonding, during which the materials shall be dispatched by the supplier after the sample has passed in the Lab test, shall be clearly mentioned in the tender itself depending on the Lot size, mode of transport and type of chemical etc.

The supplier should ensure availability of requisite transport after passing of sample in lab test and arrange for debonding /dispatch of materials in the presence of TPI agency deputed by ONGC.

The TPI agency will ensure that supply of chemicals is in manufacturer's original packing as specified in the supply order. Each bag / drum of the product should bear mark of the manufacturer, name of the chemical, Lot No, Batch No., date of manufacture and Supply order No.

Testing of the samples will be carried out in the designated ONGC Labs i.e. RGL Vadodara.

Scope of Work of TPI agency is attached as Appendix-2 of Annexure -05 for information.

Sample will be drawn from the offered lot and bonded by the representative of TPI agency in the presence of firm's representative. Sa

Sampling will be carried out as per procedure given below:

Separate tank to be considered as separate stock and Sampling will be done from each tank. Each tank will be placed properly and separately. Tank shall be accessible from all the sides for proper sampling. The tank(s) shall have mixing and isolation facilities and valve for isolation shall have facility of locking/sealing.

The samples taken from individual tanks shall be thoroughly mixed, quartered and packed properly in 4 sample bottles. These sample bottles will carry a label indicating identification details of the material and shall contain one seal each of TPI and supplier.

Total Four bulk samples will be drawn during sampling / bonding by TPI Agency. The bulk samples taken at Source will have the seal and signatures of the Supplier and authorized representative of TPI agency.

Two (2) samples will be sent to designated lab for test.

One (01) sample will be given to supplier

One (01) sample will be given to Chemistry Dept.

The sampling/bonding certificate & label of sample shall indicate witness signatures of all the individual parties involved in the exercise.

TPI Agency shall forward the samples directly to the ONGC designated laboratory, ONGC Chemistry Department, as specified in the Purchase Order and also send intimation to the Purchase Dept. regarding forwarding of samples to the laboratory for testing and other authorities as mentioned above.

In all cases where sample has passed the test and there is no dispute, the sample will be destroyed after six months from the date of receipt of corresponding bulk consignment at the Project. In case of any dispute, these samples shall be retained till resolution of said dispute. Destruction / non-destruction of such samples shall not override the supplier's obligations under warranty / shelf life or any other supply order conditions.

TPI agency will be responsible for proper sampling, bonding of chemicals and safe dispatch of the samples to designated ONGC Labs. If sample passes in Lab test, debonding will be done by TPI agency. Further, dispatch of chemical shall be done by the Supplier in the presence of the representative of TPI agency. Supplier shall ensure to start the de-bonding & dispatch of material within 7 days from the intimation of sample being passed in the lab test and complete the de-bonding & dispatch within 7 days.

After passing of sample in lab test, the supplier should ensure availability of requisite transport for dispatch. The TPI agency will ensure that supply of chemicals is in standard packing as specified in the su

	pply order. The material will be taken on ONGC account only if the material passes in lab test. The firm shall offer the material in safe and secure warehouses so as to protect the material from bad weath
9	<u>Rejection of sample:</u> The materials rejected by the Inspection Officer during this inspection will be replaced/reoffered by vendor within the delivery schedule of Purchase Order failing which provision of "Failure and Termination Clause/ Liquidated Damages Clause" of Tender document will be applicable. Any rejection by Inspecting Officer shall be considered final and binding on the vendor and such terms should be included in the contract. In the event of bulk sample getting rejected, the supplier can opt for any of the two following options: (Option-I) Supplier may get the same material re-sampled and re-tested in his presence from the same laboratory where it was tested earlier. (Option-II) Supplier may lift the failed material, re-process it and re-offer. Supplier will replace the material at its cost within delivery schedule, failing which provision of "Failure and Termination Clause/ Liquidated Damages Clause" of Tender document will be applicable. In either of the above options, item will be re-sampled and re-tested. If even the re-offered material under Option-I or re-processed and re-offered material under Option-II fails, following action shall be taken :- i.If Order is for supply of complete order quantity in single lot, ONGC will Terminate/Cancel the order and Invoke Security Deposit against the order. The Process of Vendor banning as per Annexure-37 of SCM Manual shall be followed. ii.If ordered quantity is to be supplied in more than one lot, supplier may be given one more chance to replace and re-offer the material at its cost within delivery schedule or as agreed by ONGC only in case past lots or any subsequent lots supplied were passed in testing/ acceptable to ONGC. iii.In case failure and cancellation of PO for particular lot i.e. partial quantity against PO, security deposit corresponding that lot only be forfeited, No banning shall be initiated in such case. iv.If order is cancelled for total quantity placed on the supplier, action as per vendor banning.

10	<u>Random Sampling:</u> ONGC reserves the right to carry out random sampling in view of the non-performance in field of the material supplied, in the presence of supplier's representative. However, in case supplier does not depute its representative within time specified in intimation by ONGC regarding sampling, ONGC shall carry out sampling without presence of supplier's representative. The samples so collected shall be tested at designated ONGC Labs. Rejected/failed materials shall be replaced by the supplier free of cost. In case of bulk procurement items where sampling and testing is done by the TPI, random sampling may be done at destination while unloading. The random sample may be tested at outside Lab. If results of such sample fails and in variance with TPI report, action against TPI should be initiated.
11	<u>Product Hazard / Safety:</u> The supplier should comply with all laws & regulations regarding product hazard/ safety during manufacture. It shall be the responsibility of the supplier to obtain necessary Pollution control clearance certificate required for the manufacture of the item.
12	If the requirement of additional deployments arises due to reasons attributable to the supplier, the extra expenses towards TPI shall be recovered from the supplier.
13	Packing : In tanker loads of preferably 20/40 MT each

Delivery Schedule:

The delivery depends upon plant operations; delivery schedule given is tentative. In case of any plant shut down for prolonged period, delivery period shall be modified, accordingly intimation regarding modified delivery schedule shall be made.

A		Lot No	TO BE OFFERED FOR SAMPLING WITHIN	QTY(MT)
1	EOR Surfactant	1	7 Days of the GeM Contract/PO/NOA	450
		2	7 Days of debonding of 1 st Lot	450
		3	7 Days of debonding of 2 nd Lot	450
		4	7 Days of debonding of 3 rd Lot	450
		5	7 Days of debonding of 4 th Lot	163

Note: “Offering of the material” refers to the supplier’s confirmation that the material is ready for sampling. In case of any delay by the supplier in offering the material, or if, after offering, the material is found not to be ready for sampling, the actual date of readiness for sampling shall be considered as the offer date, and Liquidated Damages (LD) will be levied for the corresponding delay period.

III SECURITY DEPOSIT SUBMISSION:

A.	Following modes for submission of SD/PS are acceptable: a. NEFT/RTGS/Electronic fund transfer to the designated account of ONGC; b. E-BG; c. SFMS based BG (only in case when issuing bank is unable to issue NeSL based e-BG) d. Unconditional irrevocable Insurance Surety Bond from an Indian Insurance Company (Insurer) registered with Insurance Regulatory and Development Authority of India (IRDAI). Note: The default/Preferable mode of submission of Security Deposit will be NEFT/RTGS/Electronic fund transfer or e-BG. However, whenever a bidder submits SFMS BG, the bidder will mandatorily be required to submit letter from issuing bank that it is unable to issue NeSL based e-BG as on date. Such letter should accompany the SFMS BG. Bidder can also submit irrevocable Unconditional Insurance Surety Bond from Insurance Company registered with Insurance Regulatory and Development Authority of India (IRDAI). Bank Draft/ Cashier's cheque/ Banker's Cheque/ non-SFMS based physical BG are NOT considered as acceptable mode for Security Deposit (SD).
A.1	PBG/SD should be submitted within 30 days from the date of GEM contract. In case PBG/SD is not submitted within 30 days from the date of GEM contract, a sum equivalent to 1.5% (one and half percent) of the amount of Performance Security per month for such delay or part thereof shall be recovered from the first Bill/invoice (& any remaining amount from subsequent invoice) submitted by the supplier/contractor.
B.	For NEFT/RTGS/Electronic fund transfer: Successful Bidder can submit the Performance Security in the form of NEFT/RTGS/Electronic fund transfer. On-line payment shall be in the name of Beneficiary, i.e., Oil and Natural Gas Corporation Limited Account No. 00000010257776699 IFSC Code SBIN0005743 Bank Name State Bank of India Branch address ONGC Chandkheda, IRS Complex, Chandkheda-380005. Successful Bidder to indicate Contract number and name of Seller entity in the transaction details field at the time of online transfer. Bidder has to upload proof of the Online Payment Transfer in place of PBG within 30 days of award of contract on GeM.

C.

For E-BG:

For issuance of Electronic Bank Guarantee through National E-Governance Services Limited (Ne SL) platform, details of ONGC (Beneficiary) are as under:

PAN: AAACO1598A

Name: Oil and Natural Gas Corporation Limited

Date of Incorporation: 23.06.1993

Email ID: ebg@ongc.co.in

Contact No.: 0120-6034040, 0120-4487711

Mobile no.: 7428133002

Legal Constitution: Entity

Registered office address: Plot No. 5A-5B, Nelson Mandela Marg, Vasant Kunj, New Delhi-70

Registered office address Pin code: 110070

Communication address: ONGC, Shared Service Center, 1st Floor,
IBM office, Sector 62, Noida-201309, Uttar Pradesh

Communication Address Pin code: 201309

D

For SFMS Based BG:

The default/preferable mode of submission of EMD / Bid Security will be NEFT/RTGS/Electronic fund transfer or e-BG.

Bidder can also submit SFMS based Bank Guarantee (BG) against EMD / Bid Security subject to the following:

a) Whenever a bidder submits SFMS based BG, the bidder will mandatorily be required to submit a letter from the issuing bank that it is unable to issue NeSL based e-BG as on date. Such letter should accompany the SFMS based BG.

b) Bidder shall get SFMS Bank Guarantee issued from SFMS enabled Bank. Bank shall issue the Bank Guarantee through SFMS system and confirmation is transmitted by the issuing bank through the SFMS system to ONGC's bank's dedicated virtual IFSC Code "SBIN000ONGC" Bidder will be required to submit Bid Security along with SFMS delivery report /message copy which has been transmitted to ONGC's bank by BG issuing bank through SFMS system.

b) Bidder shall get SFMS BG issued from SFMS enabled Bank as allowed by ONGC in tender conditions. Bank shall issue the Bank Guarantee through SFMS system and send SFMS message to ONGC's Bank (Virtual IFSC Code "SBIN000ONGC" of SBI) confirming the authenticity of Bank Guarantee. Bidder will be required to submit SFMS BG towards Bid Security along with SFMS delivery report /message copy which has been transmitted by BG issuing bank through SFMS system to ONGC's bank (at aforesaid virtual IFSC Code). The SFMS issuance message (MT 760COV) and subsequent amendments (MT 767COV) must be capable of system verification through API integration.

c) The SFMS bank guarantee will have to be given on non-judicial stamp paper of Rs 300 / with franking receipt e-stamping of Rs 300 as per stamp duty applicable at the place from where the bid has emanated. The non-judicial stamp paper / franking receipt e-stamping should be either in the name of the issuing bank or the bidder.

d) The original BG in physical form towards SD (security deposit) (along with SFMS delivery report /message copy of which has been transmitted by issuing bank through SFMS system to beneficiary's i.e. ONGC's bank) should reach to the designated ONGC office within 30 days of award of contract on GeM.

e) SFMS BG will not be acceptable unless details of the same are transmitted to the ONGC's Bank (to IFSC Code "SBIN000ONGC") through SFMS platform. It's bidder's responsibility to ensure that BG issuing bank sends the BG advice correctly in the form of message format 760COV via SFMS (Structured Financial Messaging System) as provided by RBI while capturing all requisite fields including following:

- i. Beneficiary Account Name: Oil and Natural Gas Corporation Limited
- ii. Bank Name: State Bank of India, ONGC Chandkheda, IRS Complex, Chandkheda-380005
- iii. Bank Account No: 10257776699
- iv. IFSC Code: SBIN0005743

f) In case of any error by the bidder or BG issuing bank while capturing the requisite field details/format or non-receipt of confirmation of BG through SFMS 760COV message format, the bidder shall be liable for rejection and bidder shall be responsible for the same.

g) For any amendment of SFMS BG, message 767COV through SFMS should be used (IFSC Code "SBIN000ONGC").

Address for submission of hardcopy of SFMS based physical BG: Room no. 19, Dak Section, MM department, ONGC, Ahmedabad Asset, Chandkheda-380005

E	For Insurance Surety Bond: Bidder can also submit Unconditional Irrevocable Insurance Surety Bond against Security deposit subject to the following: a. Irrevocable Unconditional Insurance Surety Bond in the prescribed format as per Annexure B, with validity as per para A above. The Insurance Surety Bond will have to be given on non-judicial stamp paper of Rs 300 / with franking receipt e-stamping of Rs 300 as per stamp duty applicable at the place where Insurer is issuing the Insurance Surety Bond. The non-judicial stamp paper / franking receipt should be either in the name of the insurance company (insurer) or the bidder. The bidders will give Insurance surety Bond from an Indian Insurance Company (Insurer) registered with Insurance Regulatory and Development Authority of India (IRDAI). b. The original Insurance Surety Bond, in the prescribed format provided in the tender, in physical form towards Security deposit should reach to the designated ONGC office within 30 days of award of contract on GeM. Address for submission of hardcopy of original Insurance Surety Bond: Room no. B-19, Dak Section, MM department, ONGC, Ahmedabad Asset, Chandkheda-380005
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IV PAYMENT TERMS:

1	Invoices along with supporting documents can be submitted/ uploaded through VIMS Portal (https://vims.ongc.co.in/), which is the preferred mode of submission of Invoice. Invoice (PDF digitally signed with class II/ III signature) and supporting documents can be uploaded in VIMS Portal by logging-in with the help of Vendor Code.
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2	However, in case supplier/contractor is not able to submit/upload the Invoice through VIMS portal as mentioned above, Invoice along with supporting documents can also be submitted/uploaded in the following way:- 1.1 EMAIL channel: Invoice (PDF digitally signed with class II/ III signature) and supporting documents can be submitted by sending these documents to a designated email-id: ap_invoices@ongc.co.in 1.2 Ten (10) digit PO or Contract number should be clearly mentioned in the invoice. For submitting the invoices through VIMS Portal and Email channel, following must be ensured: 1.2.1 Invoices should be system generated and no hand written invoices shall be allowed. 1.2.2 Invoice should be e-invoice in terms of GST Law or the digitally signed invoice only. 1.2.3 Invoices need to be scanned at a minimum of 300 dpi, preferably in colour. 1.2.4 Invoices should be in PDF format only. 1.2.5 For invoices, file name should be kept as "INVxxxxxxx.pdf" (INV must be prefixed for correct categorization of invoice and differentiation from supporting document). 1.2.6 A regular format must be maintained in which invoices are being submitted in ONGC. 1.2.7 Invoices should be digitally signed with Class - II /III Digital Certificate issued by any licensed CAs. 1.2.8 In case, Email channel is being followed, separate mail should be sent for each invoice. Note: Invoices submitted for payment should be e-invoice in terms of GST Law or the digitally signed invoice only. No physical invoice shall be accepted for payment.
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V **Raising Disputes / Complaints/ Integrity Pact :**

Curriculum Vitae of Independent External Monitors (IEMs) are placed permanently on the homepage of ONGC's website www.tenders.ongc.co.in. The bidders may raise disputes / complaints, if any, either with the designated Competent Purchase Authority (CPA) in ONGC or with concerned Director of ONGC or directly with the IEM c/o Chief Vigilance Officer, ONGC, Deendayal Urja Bhawan, 5 Nelson Mandela Marg, Vasant Kunj, New Delhi - 110070."

Note:

- I. IEMs would not consider any representation received after the oral submission has already been made by the representing bidder unless some additional documents or clarifications have specifically been sought by IEMs from the representing bidder.
- II. IEMs would consider only those representations on post contract issues wherein there is an alleged violation of provisions of IP.
- III. The name and e-mail IDs of the IEMs appointed in ONGC are as under:
 1. Vice Admiral Arun Kumar Bahl (Retd.) (arunkbahl@gmail.com)
 2. Shri Vijay Kumar Singh, IPS (Retd.) (vijaykumarsingh@hotmail.com)
 3. Smt. Seema Bahuguna, Retd. IAS, Former Secretary DPE (bahugunaseema@gmail.com)

m)

- IV. Bidders should not send pre bid queries/ clarifications or any other tender related queries to IEMs.

Note:-

Bidder to submit Integrity Pact mentioning name of the bidder in the specified field on 1st page and duly signed by the authorized signatory on every page and name of authorized signatory on last page along with name and signatures of two witnesses. In case the bidding entity is a Partnership Firm, Integrity Pact must be signed by all the partners.

- VI Bidder shall submit the copy of GSTIN Certificate along with their bid.
- VII Bidder is required to submit undertakings as per Appendix: BP-1, BP-2 & BP-3 regarding Banning order policy along with the Techno-commercial bid.
- VIII For any tender related queries, bidders may contact the following officer:
Ms. Latha R Iyer, Designation: Chief Engineer (SCM), Phone No. 079-23267028, email: IYER_LR@ONGC.CO.IN

IX **Bidder financial standing:**

- a. Bid will not be considered for evaluation where bidder is undergoing an Insolvency Resolution Process under the Insolvency & Bankruptcy Code, 2016 (or any amendments thereof) or, in case of an international bidder, is undergoing any proceedings, for resolution of bankruptcy/Insolvency by concerned court/authority of relevant jurisdiction, as on actual techno-commercial bid opening date.

In case a bidder is undergoing or gets admitted to an Insolvency Resolution Process under the Insolvency & Bankruptcy Code, 2016 (or any amendments thereof) or in case of an international bidder, is undergoing or gets admitted to any proceedings for resolution of bankruptcy/insolvency, or is declared as bankrupt/insolvent by concerned court/authority of relevant jurisdiction, prior to or during Tender evaluation stages, then such bids will be rejected.

- b. Bidder should submit a declaration that bidder is not undergoing an Insolvency Resolution Process under the Insolvency & Bankruptcy Code, 2016 (or any amendments thereof)/proceedings for resolution of bankruptcy/insolvency by concerned court/authority of relevant jurisdiction in respective country. (Format attached in the tender under "Buyer uploaded ATC document")

- X Bidder should preferably be a Manufacturer. In case the bidder is not a manufacturer, its bid can also be considered provided such bid is accompanied with back-up authority letter from the concerned manufacturer, who authorizes them to market their product provided further, such an authority letter is valid at the time of bidding and should remain valid during the entire execution period of the order. Required warranty cover of the manufacturer for the product will be provided by such a bidder and an undertaking to this effect shall be provided by the bidder in the techno-commercial bid. Offers without back-up authority letter from manufacturers will not be considered.

Notwithstanding anything contained above, Either the manufacturer or their authorised distributor/

dealer etc. can bid in a tender, but not both. Further, in cases where authorised distributor/dealer etc. participate in a tender on behalf of one manufacturer, they are not allowed to quote on behalf of another manufacturer along with the first manufacturer for the same item.

Manufacturers can authorize only one firm/bidder for specific tendered items. In case, a Manufacturer authorizes more than one firm/bidder in a tender, the bids of all such bidders will be rejected. This clause shall not apply to cases where manufacturer is a PSU

- XI. Bidders to note that ONLY Class I (Local Content equal to or more than 50%) and Class II (Local Content equal to or more than 20% but less than 50%) bidders are allowed to participate in this GeM bid. Bidder must submit the required undertaking as per the Format attached in the tender under "Buyer uploaded ATC document"
- XII Bidders to note that "Break up of Prices" will be sought from the L-1 bidder after Price bid opening.
- XIII The following order of preference for Purchase Preference among MSEs shall apply, subject to fulfilment of all other provision under the MSE Order:
- 1st Preference: MSE -SC/ST & Women
 - 2nd Preference: MSE-SC/ST
 - 3rd Preference: MSE-Women
 - 4th Preference: Other MSEs
- Note: In case of more than one eligible bidder in any of the categories mentioned above, lowest among those bidders will be eligible for purchase preference.
- XIV If goods are of foreign origin, then ONGC may ask the bidder to provide the details of price being charged by foreign manufacturer either on Ex-works or FOB or CFR basis, as the case may be. After placement of order, bidder/supplier shall be required to submit copy of Invoice (Customs Invoice) of the foreign manufacturer raised on the Indian supplier on Ex-works / FOB / CFR basis, as the case may be, at the time of shipment or alongwith documents submitted for payment. The invoice prices of foreign supplier shall be checked by concerned payment authority before making payment.

4. **Buyer Added Bid Specific ATC**

Buyer uploaded ATC document [Click here to view the file.](#)

5. **Generic**

Buyer Organization specific Integrity Pact shall have to be complied by all bidders. Bidders shall have to upload scanned copy of signed integrity pact as per Buyer organizations policy along with bid. [Click here to view the file](#)

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).

2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and
- All operative provisions of the erstwhile Labour Laws until their complete substitution.

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---